

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUPP055353: STEVEN R VAN HOOK vs CHANNEL ISLANDS HOA, et al.

09/14/2026 in Department 42

Motion to Strike Portions of Second Amended Complaint by Bijan Kohan

Motion: Motion to Strike (Opposed)

Tentative Ruling:

The Court strikes the allegations concerning statutory preference in the Second Amended Complaint (SAC) at 1:25, without leave to amend. Any request for trial preference must be made by noticed motion under Code of Civil Procedure, section 36.

The Court strikes the \$1,500,000 damage allegation at SAC 6:3 and 6:4; the \$8,900 damage allegation at SAC 6:13 and 7:14; and the \$75.00 damage allegation at SAC 7:15, without leave to amend. Plaintiff does not oppose this part of the motion to strike.

The motion to strike the prayer for exemplary damages is granted with leave to amend. Plaintiff has pled financial elder abuse (wrongful withholding of his personal property). However, Plaintiff must also allege facts that establish malice or oppression on the part of Defendant Kohan to be entitled to exemplary damages. (Civ. Code, § 3294, W&I Code, § 15657.5.)

The Court denies the motion to strike with respect to the reference to attorney fees as being authorized for elder abuse under Civil Code § 3345 at SAC 6:10; 6:19; and 7:19. Although Civil Code section 3345 does not authorize attorney fees, attorney fees are authorized under W&I Code, § 15657.5 for elder abuse, and Plaintiff's elder abuse claim survives demurrer. The reference to the incorrect code section does not impede Defendant's ability to respond, nor is it unduly confusing.

The motion to strike the general reference to Civil Code § 3345 in the SAC is also denied. Any potential award of treble damages would be made by the trier of fact. The court does not find the reference to the statute to be irrelevant, false or improper. (Code Civ. Proc., §436.)

Moving party to give notice.